

## Syllabus

FEDERAL ELECTION COMMISSION *v.* AKINS ET AL.  
CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR  
THE DISTRICT OF COLUMBIA CIRCUIT

No. 96–1590. Argued January 14, 1998—Decided June 1, 1998

The Federal Election Campaign Act of 1971 (FECA) seeks to remedy corruption of the political process. As relevant here, it imposes extensive recordkeeping and disclosure requirements upon “political committee[s],” which include “*any* committee, club, association or other group of persons which receives” more than \$1,000 in “contributions” or “which makes” more than \$1,000 in “expenditures” in any given year, 2 U. S. C. § 431(4)(A) (emphasis added), “for the purpose of influencing any election for Federal office,” §§ 431(8)(A)(i), (9)(A)(i). Assistance given to help a particular candidate will not count toward the \$1,000 “expenditure” ceiling if it takes the form of a “communication” by a “membership organization or corporation” “to its members”—as long as the organization is not “organized primarily for the purpose of influencing [any individual’s] nomination . . . or election.” § 431(9)(B)(iii). Respondents, voters with views often opposed to those of the American Israel Public Affairs Committee (AIPAC), filed a complaint with petitioner Federal Election Commission (FEC), asking the FEC to find that AIPAC had violated FECA and, among other things, to order AIPAC to make public the information that FECA demands of political committees. In dismissing the complaint, the FEC found that AIPAC’s communications fell outside FECA’s membership communications exception. Nonetheless, it concluded, AIPAC was not a “political committee” because, as an issue-oriented lobbying organization, its major purpose was not the nomination or election of candidates. The District Court granted the FEC summary judgment when it reviewed the determination, but the en banc Court of Appeals reversed on the ground that the FEC’s major purpose test improperly interpreted FECA’s definition of a political committee. The case presents this Court with two questions: (1) whether respondents had standing to challenge the FEC’s decision, and (2) whether an organization falls outside FECA’s definition of a “political committee” because “its major purpose” is not “the nomination or election of candidates.”

*Held:*

1. Respondents, as voters seeking information to which they believe FECA entitles them, have standing to challenge the FEC’s decision not to bring an enforcement action. Pp. 19–26.